



CITY COUNCIL MEETING MINUTES

November 12, 2024

CALL TO ORDER:

The Jackson City Council met in regular session in council chambers and was called to order at 6:32 p.m. by Mayor Daniel J. Mahoney.

PLEDGE OF ALLEGIANCE AND INVOCATION:

Council joined in the Pledge of Allegiance. Invocation was given by Mayor Daniel Mahoney.

ROLL CALL:

Present: Mayor Daniel Mahoney, First Ward Councilmember Arlene Robinson, Vice Mayor/Second Ward Councilmember Freddie Dancy, Third Ward Councilmember Angelita Gunn, Fourth Ward Councilmember Conner Wood, Fifth Ward Councilmember Shalanda Hunt, and Sixth Ward Councilmember Will Forgrave.

Absent: none.

Also present: City Manager Jonathan Greene, City Attorney Matthew Hagerty, City Clerk Andrea Muray, Director of Parks and Recreation Kelli Hoover, Chief Equity Officer John Willis, Director of Police and Fire Services Elmer Hitt, and City Engineer Troy White.

ADOPTION OF AGENDA:

Motion was made by Councilmember Forgrave, seconded by Councilmember Gunn to adopt the agenda. Vote – Yeas: Mayor Mahoney, Vice Mayor Dancy, Councilmembers Robinson, Gunn, Wood, Hunt, and Forgrave (7). Nays: none. Motion carried.

PRESENTATIONS/PROCLAMATIONS:

A. November as Family Court Awareness Month in the City of Jackson

Mayor Mahoney announced the proclamation declaring November as Family Court Awareness Month.

PUBLIC HEARINGS:

A. Termination of Industrial Development District No. 98

Motion was made by Councilmember Forgrave, seconded by Councilmember Robinson to conduct a public hearing in accordance with PA 198 of 1974, to terminate Industrial Development District No. 98. Vote was done by vote with all in favor. Motion carried.

No comments were offered during the public hearing.

Motion was made by Councilmember Wood, seconded by Councilmember Robinson to close the public hearing. Vote was done by voice with all in favor. Motion carried.

CITIZEN COMMENTS:

Citizen comments were heard and the meeting continued.

CONSENT CALENDAR:

A. Minutes of the October 22, 2024, Regular Meeting of the Jackson City Council

B. Reappointment to Administrative Hearings Bureau

Approve the Mayor's recommendation to reappoint Charles Falahee as an Administrative Hearings Bureau Officer for the City of Jackson's Administrative Hearings Bureau for a two-year term, beginning January 1, 2025 and ending on December 31, 2026.

C. Traffic Control Order 2403 - Autistic Child Signs - Seymour, Gracel to Floral

Approval of Traffic Control Order 2403 to install "Autistic Child Area" signs on Seymour Avenue, between Gracel Street and Floral Avenue.

D. City of Jackson, Michigan Financial Statements as of and for the Three Months Ended September 30, 2024

E. Special Event Application: Our Lady of Guadalupe Procession

Approve a request from the Sacred Heart Chapel to host the Our Lady of Guadalupe Procession on the streets of downtown Jackson.

F. Special Event Application: Kiwanis Newspaper Fundraiser

Approve a request from the Kiwanis Club of Jackson, Michigan to host the Annual Newspaper Fundraiser on the sidewalks of downtown Jackson.

G. Resolution -Social District Hours of Operation

Adopt a resolution reflecting the October 22, 2024, vote to approve the expansion of the Social District hours of operation

Motion was made by Vice Mayor Dancy, seconded by Councilmember Forgrave to approve the consent calendar. Vote – Yeas: Mayor Mahoney, Vice Mayor Dancy, Councilmembers Robinson, Gunn, Wood, Hunt, and Forgrave (7). Nays: none. Motion carried.

OTHER BUSINESS:

A. City of Jackson Curb Appeal Program

Recommendation: *Authorize the creation of a City of Jackson Curb Appeal Program, approve the Program Guidelines and the creation of related application/administrative documents, and authorize the City Manager and City Attorney to make minor modifications as needed.*

Motion was made by Vice Mayor Dancy, seconded by Councilmember Wood to authorize the creation of a City of Jackson Curb Appeal Program, approve the Program Guidelines and the creation of related application administrative documents, and authorize the City Manager and City Attorney to make minor modifications as needed. Vote – Yeas: Mayor Mahoney, Vice Mayor Dancy, Councilmembers Robinson, Gunn, Wood, Hunt, and Forgrave (7). Nays: none. Motion carried.

NEW BUSINESS:

A. 2025 Janitorial Services Contract for the Public Works Departments

Recommendation: *Approve the contract award for 2025 janitorial services for the Public Works Department (four locations) to Facilities 360 in the amount of \$59,530.92, and authorize the Finance Director and the City Manager to execute the appropriate documents in accordance with the Purchasing Agent.*

Motion was made by Vice Mayor Dancy, seconded by Councilmember Forgrave to approve the contract award for 2025 janitorial services for the Public Works Department (four locations) to Facilities 360 in the amount of \$59,530.92, and authorize the Finance Director and the City Manager to execute the appropriate documents in accordance with the Purchasing Agent. Vote – Yeas: Mayor Mahoney, Vice Mayor Dancy, Councilmembers Robinson, Gunn, Wood, Hunt, and Forgrave (7). Nays: none. Motion carried.

B. Resolution - Termination of Industrial District No. 98

Recommendation: *Approve a resolution terminating Industrial District No. 98 at the request of Sherriff-Goslin, the property owner that initiated the request to establish the district.*

Motion was made by Vice Mayor Dancy, seconded by Councilmember Gunn to approve a resolution terminating Industrial District No. 98 at the request of Sherriff-Goslin, the property owner that initiated the request to establish the district. Vote – Yeas: Mayor Mahoney, Vice Mayor Dancy, Councilmembers Robinson, Gunn, Wood, Hunt, and Forgrave (7). Nays: none. Motion carried.

C. Sale of City owned property located at 116 E. Mason

Recommendation: *Approve the sale of City owned property located at 116 E. Mason Street to K&R Real Investments, Inc, and authorize the City Manager to execute property transfer documents.*

Motion was made by Vice Mayor Dancy, seconded by Councilmember Forgrave to approve the sale of City owned property located at 116 E. Mason Street to K&R Real Investments, Inc, and authorize the City Manager to execute property transfer documents. Vote – Yeas: Mayor Mahoney, Vice Mayor Dancy, Councilmembers Robinson, Gunn, Wood, Hunt, and Forgrave (7). Nays: none. Motion carried.

D. Contract award for the 2025 West Clarifier Re-Paint & Repairs Project.

Recommendation: *Approve a resolution for the contract award to Seven Brothers Painting Inc., in the amount of \$776,000 for the 2025 West Clarifier Re-Paint & Repairs Project.*

Motion was made by Vice Mayor Dancy, seconded by Councilmember Forgrave to approve a resolution for the contract award to Seven Brothers Painting Inc., in the amount of \$776,000 for the 2025 West Clarifier Re-Paint & Repairs Project. Vote – Yeas: Mayor Mahoney, Vice Mayor Dancy, Councilmembers Robinson, Gunn, Wood, Hunt, and Forgrave (7). Nays: none. Motion carried.

E. Feasibility Study for a Mid-Michigan Regional Lime Calciner

Recommendation: *Adopt resolution to enter into a Memorandum of Agreement to Obtain a Feasibility Study for a Mid-Michigan Regional Lime Calciner, and the City agrees to financially support the cost of the Mid-Michigan Regional Lime Calciner Feasibility Study in the amount of 14.36% of costs over and above \$675,000, at a not to exceed the amount of \$35,900.*

Motion was made by Vice Mayor Dancy, seconded by Councilmember Gunn to adopt resolution to enter into a Memorandum of Agreement to Obtain a Feasibility Study for a Mid-Michigan Regional Lime Calciner, and the City agrees to financially support the cost of the Mid-Michigan Regional Lime Calciner Feasibility Study in the amount of 14.36% of costs over and above \$675,000, at a not to exceed the amount of \$35,900. Vote – Yeas: Mayor Mahoney, Vice Mayor Dancy, Councilmembers Robinson, Gunn, Wood, Hunt, and Forgrave (7). Nays: none. Motion carried.

F. Resolution for the Grant Agreement with the Michigan Department of Environment, Great Lakes and Energy

Recommendation: *Approval of a resolution to enter into the grant agreement with the Michigan Department of Environment, Great Lakes and Energy (EGLE) for the American Rescue Plan - State Revolving Fund and authorize the Water Treatment Plant Supervisor and City Clerk to execute the appropriate documents.*

Motion was made by Vice Mayor Dancy, seconded by Councilmember Forgrave to approve a resolution to enter into the grant agreement with the Michigan Department of Environment, Great Lakes and Energy for the American Rescue Plan - State Revolving Fund and authorize the Water Treatment Plant Supervisor and City Clerk to execute the appropriate documents. Vote – Yeas: Mayor Mahoney, Vice Mayor Dancy, Councilmembers Robinson, Gunn, Wood, Hunt, and Forgrave (7). Nays: none. Motion carried.

G. First amendment to the contract agreement with Johnny's Tree Service, Inc.

Recommendation: *Approval of the first amendment to the contract agreement with Johnny's Tree Service, Inc., for as-needed tree trimming, tree removals, and stump grinding and restoration in the increased amount of up to \$200,000.*

Motion was made by Vice Mayor Dancy, seconded by Councilmember Gunn to approve the first amendment to the contract agreement with Johnny's Tree Service, Inc., for as-needed tree trimming, tree removals, and stump grinding/restoration in the increased amount of up to \$200,000. Vote – Yeas: Mayor Mahoney, Vice Mayor Dancy, Councilmembers Robinson, Gunn, Wood, Hunt, and Forgrave (7). Nays: none. Motion carried.

H. Nixon Pool Resurfacing Project

Recommendation: *Approve the lowest quote for pool resurfacing to Reflections Pool and Spa of Fort Gratiot, Michigan, for \$125,000.*

Motion was made by Vice Mayor Dancy, seconded by Councilmember Gunn to approve the lowest quote for pool resurfacing to Reflections Pool and Spa of Fort Gratiot, Michigan, for \$125,000. Vote – Yeas: Mayor Mahoney, Vice Mayor Dancy, Councilmembers Robinson, Gunn, Wood, Hunt, and Forgrave (7). Nays: none. Motion carried.

I. Resolution suspending enforcement of firearms discharge in Ella Sharp Park

Recommendation: *Approve a resolution suspending enforcement of firearms discharge in Ella Sharp Park and contracting with Aaron's Nuisance of Rives Junction for \$40,000.*

Motion was made by Vice Mayor Dancy, seconded by Councilmember Forgrave to approve a resolution suspending enforcement of firearms discharge in Ella Sharp Park and contracting with Aaron's Nuisance of Rives Junction for \$40,000. Vote – Yeas: Mayor Mahoney, Vice Mayor Dancy, Councilmembers Robinson, Gunn, Wood, Hunt, and Forgrave (7). Nays: none. Motion carried.

J. Resolution to accept \$300,000 from the Department of Natural Resources Trust Fund Grant

Recommendation: *Accept a resolution for \$300,000 from the Department of Natural Resources Trust Fund Grant to finish the MLK Equality Trail from the Optimist Shelter to Weatherwax Road.*

Motion was made by Vice Mayor Dancy, seconded by Councilmember Gunn to approve a resolution to accept \$300,000 from the Department of Natural Resources Trust Fund Grant to finish the MLK Equality Trail from the Optimist Shelter to Weatherwax Road. Vote – Yeas: Mayor Mahoney, Vice Mayor Dancy, Councilmembers Robinson, Gunn, Wood, Hunt, and Forgrave (7). Nays: none. Motion carried.

K. Change to the Standard Lighting Contract with Consumers Energy for Installation of a Streetlight.

Recommendation: *Approve the Resolution for Change to the Standard Lighting Contract with Consumers Energy for the addition of a streetlight at 1607 Kent Street and authorize the Mayor and City Clerk to execute the appropriate documents.*

Motion was made by Vice Mayor Dancy, seconded by Councilmember Robinson to approve the Resolution for Change to the Standard Lighting Contract with Consumers Energy for the addition of a streetlight at 1607 Kent Street and authorize the Mayor and City Clerk to execute the appropriate documents. Vote – Yeas: Mayor Mahoney, Vice Mayor Dancy, Councilmembers Robinson, Gunn, Wood, Hunt, and Forgrave (7). Nays: none. Motion carried.

L. Resolution for Adoption for an Agreement with the EPA - Hupp Avenue and Morrell Street Transmission Water Main.

Recommendation: *Adopt a resolution to enter into an agreement with the United States Environmental Protection Agency (EPA) for transmission water main construction on Hupp Avenue and Morrell Street and authorize the Mayor and City Clerk to execute the appropriate documents.*

Motion was made by Vice Mayor Dancy, seconded by Councilmember Hunt to adopt a resolution to enter into an agreement with the United States Environmental Protection Agency for transmission water main construction on Hupp Avenue and Morrell Street and authorize the Mayor and City Clerk to execute the appropriate documents. Vote – Yeas: Mayor Mahoney, Vice Mayor Dancy, Councilmembers Robinson, Gunn, Wood, Hunt, and Forgrave (7). Nays: none. Motion carried.

M. Amendment 1 – RAISE Program Agreement with USDOT and MDOT MLK Corridor Reimagined Reconstruction Project.

Recommendation: *Approve Amendment 1 to the RAISE Program agreement with the United States Department of Transportation (USDOT) and the Michigan Department of Transportation (MDOT) for the MLK Corridor Reimagined street reconstruction project and authorize the Mayor and City Clerk to execute the appropriate documents.*

Motion was made by Vice Mayor Dancy, seconded by Councilmember Robinson to approve Amendment 1 to the RAISE Program agreement with the United States Department of Transportation and the Michigan Department of Transportation for the MLK Corridor Reimagined street reconstruction project and authorize the Mayor and City Clerk to execute the appropriate documents. Vote – Yeas: Mayor Mahoney, Vice Mayor Dancy, Councilmembers Robinson, Gunn, Wood, Hunt, and Forgrave (7). Nays: none. Motion

carried.

N. Youth Council Membership Eligibility

Recommendation: *Approve the first reading and advance to second reading an amendment to section Sec. 15-39 Appointment of youth council members of the City of Jackson Code of Ordinances to include eligibility of middle school students and high school students.*

Motion was made by Vice Mayor Dancy, seconded by Councilmember Hunt to approve the first reading and advance to second reading an amendment to section Sec. 15-39 Appointment of youth council members of the City of Jackson Code of Ordinances to include eligibility of middle school students and high school students. Vote – Yeas: Mayor Mahoney, Vice Mayor Dancy, Councilmembers Robinson, Gunn, Wood, Hunt, and Forgrave (7). Nays: none. Motion carried.

CITY COUNCILMEMBER’S COMMENTS:

Mayor Mahoney, Vice Mayor Dancy, and Councilmembers Robinson, Gunn, Wood, Hunt, and Forgrave all offered comments.

MANAGER’S COMMENTS:

City Manager Jonathan Greene offered comments and provided time for City Attorney Matthew Hagerty to offer comments.

ADJOURNMENT:

No further business being offered, a motion to adjourn was made by Vice Mayor Dancy, seconded by Councilmember Wood. Mayor Mahoney adjourned the meeting at 7:47 p.m.